

		and an adverse claim. (SAC, ¶¶ 1, 173-177.) Thus, APSEC's demurrer to the 10th cause of action is overruled. <u>Reinstatement of Loan</u> As discussed above, plaintiffs have adequately alleged a cause of action for wrongful foreclosure. Thus, plaintiffs may reinstate their loan. Therefore, defendants' demurrer to the 11th cause of action is overruled.
6	23-01333845 <i>Garcia vs. Mazda Motor of America, Inc.</i>	Motion to Compel Production OFF CALENDAR
7	22-01241218 <i>Gay vs. Nguyen</i>	Motion for Summary Judgement and/or Adjudication The motion of defendant Memorial Care Surgical Center at Orange Coast, LLC ("Surgery Center") for Summary Judgment in favor of the Surgery Center as to plaintiffs David L. Gay and Jamie Gay's Second Amended Complaint is DENIED. <u>Evidentiary Objections:</u> California Rules of Court, Rule 3.1354, subdivision (b) which states in pertinent part: "Each written objection must be numbered consecutively and must: . . . (3) Quote or set forth the objectionable statement or material. . ." Both Surgery Center and Plaintiffs have filed extensive evidentiary objections, however, neither party has complied with Rule 3.1354 and quoted or set forth the objectionable statement or material to which the objection is made. Therefore, the Court declines to rule on the evidentiary objections filed by the parties. <u>Request for Judicial Notice:</u> Surgery Center's Request for Judicial Notice of Exhibits A-U is GRANTED. Plaintiffs' Request for Judicial Notice is DENIED as unnecessary to the disposition of the Motion. <u>Merits:</u> "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c(a)(1).) "A defendant moving for summary judgment must show 'that one or more elements of the cause of action...cannot be established, or that there is a complete defense to the cause of action.'" (<i>Wicks v. Antelope Valley Healthcare District</i> (2020) 49 Cal.App.5th 866, 875.) "Summary judgment is appropriate where 'all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.'" (<i>Wicks, supra</i>, 49 Cal.App.5th 875.) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(2).)